IN THE DISTRICT COURT OF APPEAL
OF THE STATE OF FLORIDA
SECOND DISTRICT

Case No. 2D2026-0590

Lower Case No. 25-CA-001781

CHRISTOPHER MOORE,
Appellant,

v.

U.S. BANK NATIONAL ASSOCIATION,
Appellee.

On Review From the Circuit Court of the Thirteenth Judicial Circuit in and for Hillsborough County, Florida

APPELLEE'S ANSWER BRIEF

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PRELIMINARY STATEMENT

In this Answer Brief, the Appellee and Plaintiff below, U.S. BANK NATIONAL ASSOCIATION, AS SUCCESSOR TRUSTEE TO LASALLE BANK NATIONAL ASSOCIATION, AS TRUSTEE FOR WASHINGTON MUTUAL ASSET-BACKED CERTIFICATES WMABS SERIES 2006-HEI, is referred to as "U.S. Bank," "Plaintiff," or "Appellee," unless otherwise denoted.

The Appellant, CHRISTOPHER MOORE, is referred to as "Appellant" or "Moore," unless otherwise denoted.

References to Appellee's Appendix to this Answer Brief are referred to as (A. p. Y), where Y denotes the page number(s) within the Appendix.

STATEMENT OF THE CASE AND FACTS

In his initial brief, Appellant provides an improper "introduction", deviates from the record, and leaves out pertinent information in his statement of the case and facts. (Initial Brief or "IB," generally). *See* Fla. R. App. P. 9.210(b); *Island Harbor Beach Club, Ltd. v. Dep't of Nat. Res.*, 471 So. 2d 1380, 1381 (Fla. 1st DCA 1985) (condemning, "unsupported factual assertions and extensive improper legal arguments contained in the statement of facts.").

As such, Appellee provides its own statement of the case and facts below.

I. Nature of the Case

This non-final appeal emanates from a residential mortgage foreclosure action filed on March 3, 2025. (A. p. 10-67). Moore's Notice of Appeal seeks appellate review of the Clerk's issued certificate of sale, the Clerk's issued certificate of title, and the lower court's order denying his first "Emergency Motion to Vacate Sale and/or Certificate of Title" rendered on February 20, 2026. (*Id.* at p. 98-102).

Appellant's argument is summarized as follows: The Clerk's "premature" issuance of certificate of title "approximately 10 hours and fifty-four minutes before the objection period expired" "directly and irreparably deprived" him of the opportunity to file Bankruptcy. (IB p. 6). Notably, the initial brief contains no record citations, cites merely two legal authorities which do not stand for the proposition presented, and provides no legal analysis.

II. Course of the Proceedings and Disposition in the Lower Tribunal

a. The Loan Agreement

On December 2, 2005, Earl Moore (the "Borrower") executed a promissory note payable to Lenders Direct Corporation in the amount of $ 312,800.00. (A. p. 17-22). To secure payment of the Note, the Borrower

also executed a residential mortgage on the property located at 11114 Hannaway Drive, Riverview, Florida 33569. (*Id.* at p. 23-44). The Borrower defaulted on the payment due for November 1, 2023, and all subsequent payments thereafter. (*Id.* at p. 12, ¶ 9.).

b. The Lawsuit

Because the default was not cured, U.S. Bank commenced the underlying foreclosure action on March 3, 2025 as holder of the note. (*Id.* at p. 10-67). Appellant was named solely based upon his title interest as an heir of the deceased Borrower. (*Id.* at p. 13, ¶ 17). On April 21, 2025, Moore filed an answer through counsel. (*Id.* at p. 68-70). He did not assert any affirmative defenses to the foreclosure action. (*Id.*). Appellant concedes the loan's default. (Initial Brief p.4.) ("… fell behind on mortgage payments, and subsequently entered into foreclosure…."). The case was pending for 8 months before the lower court entered an in rem final judgment of foreclosure in the amount of $418,056.74 on November 3, 2025. (*Id.* at p. 71-80). The Court set a foreclosure sale for February 5, 2026—ninety (90) days from the date of entry of the final judgment. (*Id.*).

The sale proceeded as scheduled on February 5, 2026 and the Certificate of Sale was issued on the same date. (*Id.* at p. 81). Eleven days thereafter, the Clerk issued the Certificate of Title. (*Id.* at p. 82-83). No

objection to sale was filed at the time the Certificate of Title was issued. *See generally* (*Id.* p. 4-9) (showing no objection filed). It was not until more than 24 hours later, at 5:09 PM on February 17, 2026—twelve days after Certificate of Sale was issued, that Moore filed an objection to the sale. (*Id.* at p. 84-85). Moore's objection was based solely upon his position that his deadline to object expired on February 17, 2026. (*Id.*). Moore claimed that February 16, 2026 was a federal holiday permitting him until February 17, 2026 to file an objection. (*Id.*) No other basis for his objection was alleged. (*Id.*). The Court denied same because the objection was untimely. (*Id.* at p. 86-88).

Two days later, on February 19, 2026, Moore then filed his first "Emergency" Motion to Vacate Sale and/or Certificate of Title. (*Id.* at p. 89-94). Therein, Moore pivoted asserting merely that the Certificate of Title was issued prematurely and gave short shrift to his basis for vacating the sale. (*Id.*). In a single conclusory, incomplete sentence, Moore simultaneously claimed the sale should be vacated based on a purported "error" and "fraud". (*Id.*). However, Moore failed to elucidate further. (*Id.*). The Court denied Moore's motion on February 20, 2026. (*Id.* at p. 95-97). This appeal followed. (*Id.* at p. 98-102).

On March 5, 2026, Moore filed his Notice of Appeal. (*Id.*). Therein, he specifically identified the certificate of sale, the certificate of title and the order entered on February 20, 2026 as the basis for his appeal. (*Id.*). He did not amend his Notice of Appeal.

SUMMARY OF THE ARGUMENT

The trial court properly denied Moore's Emergency Motion to Vacate Sale and/or Certificate of Title on February 20, 2026. The Court should affirm for the following reasons:

(I) This court lacks jurisdiction to consider the orders rendered after the Appellant's Notice of Appeal. Moore's attempt to shift appellate review to these orders is an impermissible expansion of the scope of review. The Court also lacks jurisdiction to review the certificate of sale and certificate of title as they are not appealable orders.

(II) Moore fails to meet his burden on appeal. The challenged ruling is presumed correct, and it is Appellant's burden to demonstrate error through cogent legal argument supported by applicable authority and citations to the record. Appellant's Initial Brief contains no citations to the record and instead relies upon unsupported factual assertions not preserved below. Moreover, Moore's initial brief was untimely, fails to include an appendix,

and presents authority that does not stand for the proposition claimed. These deficiencies provide a sufficient basis to affirm.

(III) The court did not abuse its discretion in upholding the foreclosure sale. Moore fails to set forth a cognizable basis to overturn the sale. The record, on its face, does not demonstrate an abuse of discretion by the lower court.

(IV) Finally, to the extent the certificate of title was issued prematurely, it was harmless error. The filing of the certificate of title does not automatically require vacatur when the record plainly shows that Appellant failed to timely file an objection to sale. At worst, the Court can remand solely to vacate the certificate of title and re-issue forthwith but it does not affect the validity of the sale itself.

STANDARD OF REVIEW

Orders vacating or setting aside a judicial sale are subject to review under the abuse of discretion standard. *Arsali v. Chase Home Fin. LLC*, 121 So. 3d 511, 519 (Fla. 2013). (“Trial courts’ judgments pertaining to set asides of judicial foreclosure sales are now, as they always have been, subject to review by way of an abuse of discretion standard.”). “If reasonable men could differ as to the propriety of the action taken by the

trial court, then the action is not unreasonable and there can be no finding of an abuse of discretion." *Canakaris v. Canakaris*, 382 So. 2d 1197, 1203 (Fla. 1980).

"The burden is on the appellant to demonstrate error." *Applegate v. Barnett Bank of Tallahassee*, 377 So. 2d 1150, 1152 (Fla. 1979). Arguments not presented to the trial court cannot serve as a basis for reversal on appeal. *Keech v. Yousef*, 815 So. 2d 718, 720 (Fla. 5th DCA 2002).

ARGUMENT

I. The Court Lacks Jurisdiction to Review the Orders Rendered After the Notice of Appeal as well as the Clerk's Issued Certificate of Sale and Certificate of Title

In the underlying notice of appeal, Moore sought review of the certificate of sale issued on February 5, 2026; the certificate of title issued on February 16, 2026; and the Order Denying his "Emergency" Motion to Vacate Certificate of Sale and/or Title rendered on February 20, 2026. (*Id.* at p. 98-102). Yet, Moore's Initial Brief now attempts to expand this court's review to the orders denying the "Emergency Motion to Stay, and second Emergency Motion to Vacate the Certificate of Title, and Set Aside the Foreclosure Sale, (entered by the Honorable Christine Marlewski on March

5, 2026)".[1] *See* Initial Brief ¶ 1. This is improper.

Florida law is well settled that the Court lacks jurisdiction to review the orders denying Appellant's Emergency Motion to Stay and second Emergency Motion to Vacate the Certificate of Title and Set Aside the Foreclosure sale rendered on March 6, 2026. *Santos v. HSBC Bank USA, Nat'l Ass'n as Tr. for Holders of the GSAA Home Equity Tr. 2005-07*, 258 So. 3d 535, 537 (Fla. 3d DCA 2018) ("Pursuant to this rule [Fla. R. App. P. 9.110], Florida appellate courts deny review of judicial acts occurring after the filing of a notice of appeal."); *Lauderdale Marine Ctr., Ltd. v. MYD Marine Distributors, Inc.*, 31 So. 3d 256, 257 (Fla. 4th DCA 2010) ("This court may review only proceedings occurring prior to the date of appellant's notice of appeal. Fla. R. App. P. 9.110(h). As the notice of appeal was filed months prior to the hearing on attorneys' fees, we lack jurisdiction to consider the issue.").

Appellant's attempt to shift appellate review to the orders rendered on March 6, 2026 is both a jurisdictional defect and an impermissible expansion of the scope of review. Fla. R. App. P. 9.110(d) ("notice shall contain … the nature of the order to be reviewed."). Appellant did not

[1]These orders were entered on March 6, 2026 (not March 5, 2026), the day after Appellant filed his Notice of Appeal.

otherwise invoke the court's jurisdiction to review these orders. This Court does not have jurisdiction to consider orders rendered after the Notice of Appeal was filed. Fla. R. App. P. 9.110(h). For these reasons, Appellant's attempt at review of these orders should be rejected.

Even still, Appellant's second motion to vacate was an unauthorized motion under Fla. R. Civ. P. 1.540(b) further precluding this court's review. Florida law is clear, "[a] second motion for relief from judgment is improper if it attempts to relitigate issues decided by a previous order." *Ortiz v. U.S. Bank Tr. Nat'l Ass'n*, 393 So. 3d 264 (Fla 2d DCA 2024) (citing *Minda v. Minda*, 190 So. 3d 1126, 1127 (Fla. 2d DCA 2016)). "If a party is dissatisfied with a trial court's ruling on an initial rule 1.540(b) motion, "the [ ] remedy [is] by appeal, not be [sic] filing successive motions to vacate containing the same general grounds or even new ones, which could have been raised in the first motion." *Id.* (internal citations omitted).

In this case, Moore filed his first motion on February 19, 2026. Therein he challenged the issuance of the certificate of title and purportedly sought to vacate the sale. (A. p. 89-94). His motion was denied on February 20, 2026. (*Id.* at p. 95-97). Undeterred, on March 5, 2026, Moore filed his second motion to vacate. The motion was nearly identical to the first. Moore's second motion presented no new arguments and was nothing

more than an improper attempt to relitigate issues previously decided. Moore cannot simply file successive motions to vacate asserting identical claims previously presented and denied. *Atlas v. City of Pembroke Pines*, 441 So. 2d 652, 652 (Fla. 4th DCA 1983) ("[A] trial court is without jurisdiction to entertain a second motion for relief from judgment which attempts to relitigate matters settled by a prior order denying relief.") (citation omitted).

Further, Moore is not entitled to any relief regarding the certificate of sale or the certificate of title. They are not appealable orders. They are issued by the clerk of court. The issuance of the certificate of sale and certificate of title by the clerk of court is a purely ministerial function, not an order of the court that would give grounds to appeal. *Pinellas County v. Clearwater Fed. Sav. & Loan Ass'n*, 214 So. 2d 525, 529 (Fla. 2d DCA 1968) ("The lower Court found inter alia that issuance of certificate of title '* * * is a mere ministerial function required by statutory law (Florida Statutes s 702.02) and that statutory procedures and ministerial functions were not superseded by the appeal filed by County * * *'. We agree.").

Accordingly, this Court's review is limited to the February 20, 2026 order denying the first "Emergency" Motion to Vacate Foreclosure Sale and/or Certificate of Title. (A. p. 89-94).

II. Appellant Fails to Meet His Burden in the Initial Brief to Demonstrate Reversible Error; the Initial Brief Omits Legal Authorities, Analysis, and Record Citation

Moore fails to meet his burden to demonstrate error. *Applegate*, 377 So. 2d at 1152 ("the burden is on the appellant to demonstrate error."). His initial brief lacks record citations and legal support and is filled with assertions that are outside the record.

The Florida Rules of Appellate Procedure require that the appellant set forth in the initial brief, "argument with regard to each issue, with citation to appropriate authorities, and including the applicable appellate standard of review." Fla. R. App. P. 9.210(b)(5). "[V]ague and conclusory allegations on appeal are insufficient to warrant relief." *Doorbal v. State*, 983 So. 2d 464, 482 (Fla. 2008). *See also Caldwell v. Florida Dept. of Elder Affairs*, 121 So. 3d 1062, 1064 (Fla. 1st DCA 2013) ("[P]erfunctory statements are insufficient to present an argument for appellate review.").

U.S. Bank is mindful that Moore purports to represent himself pro se for this appeal. However, "[i]t is an elemental principle of appellate procedure that every judgment, order or decree of a trial court brought up for review is clothed with the presumption of correctness and that the burden is upon the appellant in all of such proceedings to make error clearly appear." *State v. Town of Sweetwater*, 112 So. 2d 852, 854 (Fla.

1959) (Appellants' two-paragraph argument in brief "without citation or authority" was wholly insufficient to demonstrate reversible error.).

Additionally, as a pro se party, Moore is still obligated to abide by the appellate rules and controlling case law. *Plumer II v. U.S. Bank Nat'l Ass'n*, 231 So. 3d 512, 513 (Fla. 3d DCA 2017) ("[P]ro se parties are obligated to abide by the appellate rules."). *See also Edwards v. Codrington*, 325 So. 3d 993, 996 (Fla. 5th DCA 2021) ("pro se litigants are still subject to procedural rules."); *Jenkins v. Silver Pines Ass'n, Inc.*, 328 So. 3d 1144, 1145 (Fla. 5th DCA 2021) (Lambert, C.J., concurring specially) ("That Jenkins is not represented by counsel is of no consequence because this burden remains squarely upon the litigant, whether represented by counsel or not.").

Judge Lambert's concurrence in *Jenkins* is particularly apt, as *Jenkins* involved an appeal from an order denying a motion to set aside a foreclosure sale. 328 So. 3d at 1145-48. Judge Lambert explained, "[a]s the appellant, the burden was solely upon Jenkins to establish or show to us, through his briefs, how the trial court abused its discretion in denying his motion to set aside or 'reverse' the judicial foreclosure sale held below." *Id.* at 1146. Like here, "Jenkins failed to meet his burden." *Id.* Accordingly, the Fifth District affirmed. The same result is required here.

Moore's initial brief falls woefully short of the appellate rules and governing law. Among other things, the initial brief contains an improper "introduction"; does not contain a proper statement of case and facts; and it fails to include any record citation or legal analysis. Fla. R. App. P. 9.210(b)(5) (The initial brief shall contain . . . argument with regard to each issue, with citation to appropriate authorities, and including the applicable appellate standard of review.").

Moreover, despite suggesting that there are 3 issues on appeal, Appellant's argument section does not correspond to these issues. (IB p. 7). In particular, Appellant offers absolutely no argument as to issues two or three at all. Accordingly, he has waived and abandoned these issues. *David M. Dresdner, M.D., P.A. v. Charter Oak Fire Ins. Co.*, 972 So. 2d 275, 281 (Fla. 2d DCA 2008) (finding that an issue not raised on appeal had "been waived or abandoned"); *Hoskins v. State*, 75 So. 3d 250, 257 (Fla. 2011) (concluding that argument raised by appellant in reply brief, but not raised in initial brief, was barred); *Polyglycoat Corp. v. Hirsch Distributors, Inc.*, 442 So. 2d 958, 960 (Fla. 4th DCA 1983) ("When point, positions, facts and support authorities are omitted from the brief, a court is entitled to believe that such are waived, abandoned, or deemed . . . to be unworthy."); *J.A.B. Enterprises v. Gibbons*, 596 So. 2d 1247, 1250 (Fla. 4th DCA 1992)

("Appellants' reply brief denies that they received the order, however, an issue not raised in an initial brief is deemed abandoned and may not be raised for the first time in a reply brief."). Notably, Moore cites a mere two cases in his entire initial brief, and neither supports the propositions he advances.[2] They also certainly do not support reversal.

Moore's initial brief mainly consists of fleeting and unelaborated subjective assertions. For example, Moore claims, without elaboration, that the Court's "refusal to vacate the title effectively ruled that the Clerk can shorten a statutory deadline at will, provided that the homeowner doesn't have a 'good enough' objection to sale." (IB p. 9). Moore's suggestion is disingenuous, unsupported by the record or the law, and mischaracterizes the Court's ruling. *Cong. Park Off. Condos II, LLC v. First-Citizens Bank & Tr. Co.*, 105 So. 3d 602, 610 (Fla. 4th DCA 2013) ("A common problem we encounter in mortgage foreclosure appeals is that the appellant slings legal terminology in a brief—fraud, unclean hands, estoppel, TILA violation—

[2]U.S. Bank submits that the incorrect case authorities presented by Appellant are likely due to Appellant's use of Artificial Intelligence in the preparation of the initial brief. For example, Moore represents that *Paladin Props. v. Fam. Inv. Enters.*, 952 So. 2d 560, 562 (Fla. Dist. Ct. App. 2007) stands for "timing provisions of § 45.031 are mandatory". IB p. 8. However, *Paladin* involves review of an improperly vacated default judgment. It does not involve a foreclosure sale. Section 45.031 is not cited nor discussed therein.

without tying the legal concept to any set of real-world facts established in the trial court."). More importantly, Appellant's claim also intentionally ignores the dispositive fact that there was no objection to sale filed when the clerk issued the certificate of title. *See generally* (*Id.* p. 4-9) (showing no objection filed). Moore did not file an objection until more than 24 hours after the certificate of title was issued—at 5:09 PM on February 17, 2026 (the twelfth day). (A. p. 84-85). Moore's objection to sale was untimely.

Although section 45.031(8), Fla. Stat. authorizes objections to judicial foreclosure sales, it requires such objections to be filed within 10 days. *See* § 45.031(8), Fla. Stat. The 10-day window is jurisdictional. *See Ryan v. Countrywide Home Loans, Inc.*, 743 So. 2d 36, 38 (Fla. 2d DCA 1999) ("Accordingly, because Countrywide did not file a timely motion challenging the judicial sale and because the motion it did file could not relate back to a timely date, the trial court was without authority to set aside the sale.").

Thus, even if the clerk had delayed issuance of the certificate of title by the "11 hours" as Moore advocates, his objection would still have been after the issuance of the certificate of title (and untimely regardless). The timing of the issuance of the certificate of title therefore did not alter the outcome of this action.

Additionally, Moore opines (without legal support, analysis, or argument) that the "10-day window provided by section 45.031(5) serves a dual purpose: it allows for objections, but it also defines the moment at which the mortgagor's equitable right of redemption is extinguished and legal title passes." (IB p. 9). He is wrong. The purpose of the 10-day period is separate and distinct, from the right of redemption. Its purpose is to "afford a mechanism to assure all parties and bidders to the sale that there is no irregularity at the auction or any collusive bidding, etc." *U.S. Bank Nat'l Ass'n v. Rios*, 166 So. 3d 202, 210 (Fla. 2d DCA 2015) (quoting *In re Catalano*, 510 B.R. 654, 659 (Bankr. M.D. Fla. 2014)) (quotation marks omitted). This is why objections must raise some "defect or irregularity with the foreclosure sale itself in order to be a legally sufficient ground to set aside the sale." *Skelton v. Lyons*, 157 So. 3d 471, 473 (Fla. 2d DCA 2015) (quoting *Indian River Farms v. YBF Partners*, 777 So. 2d 1096, 1098 (Fla. 4th DCA 2001)) (emphasis added); *see also Arsali*, 121 So. 3d at 515 (Fla. 2013) (the grounds for setting aside a judicial sale include "gross inadequacy of consideration, surprise, accident, or mistake imposed on complainant, and irregularity in the conduct of the sale") (quoting *Moran-Alleen Co. v. Brown*, 123 So. 561, 561 (1929)).

The right of redemption expires upon the issuance of certificate of sale unless otherwise extended by the foreclosure judgment. *See* § 45.0315 (“At any time before the later of the filing of certificate of sale by the clerk or the time specified in the judgment…”). In this case, the judgment provides: “[o]n filing the certificate of sale, defendant(s) and all persons claiming under…. Must be foreclosed of all estate or claim in the property…”. (A. p. 75-76, ¶ 10). Accordingly, Moore’s right of redemption expired on February 5, 2026—11 days before the issuance of certificate of title. (A. p. 81). Consequently, the issuance of the Certificate of Title did not deprive Moore of his right of redemption.

Finally, Moore waived and failed to preserve his arguments he now presents for the first time on appeal. Moore did not assert the arguments below he now presents pertaining to the right of redemption, filing bankruptcy, or prejudice. IB p. 9.

The law is well-established that “[a] party may not go outside the record in making appellate arguments.” *Krock v. Rozinsky*, 78 So. 3d 38, 42 (Fla. 4th DCA 2012). *See also Brayton v. Brayton*, 46 So. 3d 142, 143, n.1 (Fla. 5th DCA 2010) (“An appellate court is not allowed to consider matters outside of the record.”). Indeed, “[a]n appeal has never been an evidentiary proceeding; it is a proceeding to review a judgment or order of a lower

tribunal based on the record before that tribunal." *Thornber v. City of Fort Walton Beach*, 534 So. 2d 754, 755 (Fla. 1st DCA 1988). *See Diaz v. Wells Fargo Bank, N.A.*, 189 So. 3d 279, 282 (Fla. 5th DCA 2016) ("To preserve an issue for appellate review, 'the specific legal ground upon which a claim is based must be raised at trial . . . .'") (quoting *Aills v. Boemi*, 29 So. 3d 1105, 1109 (Fla. 2010)). The district courts are not error-correcting courts. It necessarily follows that arguments not presented to the trial court cannot form the basis for reversal on appeal. *Keech*, 815 So. 2d at 720; *Hernandez v. Kissimmee Police Dep't.*, 901 So. 2d 420, 421 (Fla. 5th DCA 2005) ("As a general rule, reviewing courts will not consider claims of error which are raised for the first time on appeal because it is the function of the appellate court to review errors allegedly committed by the trial court, not to entertain for the first time on appeal issues which the complaining party could have and should have, but did not, present to the trial court."). Moore may not use this appeal to assert these claims for the first time. As a result, his arguments are improper.

Despite Appellant's pro se status, it is not the Court's function to re-brief an appeal or depart from its role as a neutral tribunal. *See Polyglycoat Corp. v. Hirsch Distribs., Inc.*, 442 So. 2d 958, 960 (Fla. 4th DCA 1983) (discussing dispassionate role of court); *Manatee Cnty. Sch. Bd. v.*

NationsRent, Inc., 989 So. 2d 23, 25 (Fla. 2d DCA 2008) ("We work within the framework of the briefs, and it is not our function to rebrief an appeal."). And an appellant effectively waives all points, positions, facts, and supporting authorities that are not specifically asserted or relied upon in the initial brief. Moore may not wait until the reply brief to raise factual or legal issues not addressed in the initial brief. The Court should affirm.

Importantly, Moore's initial brief was also filed outside the Court's imposed deadline and failed to include an appendix pursuant to Fla. R. App. P. 9.220.[3]

III. Moore Fails to Set Forth a Cognizable Basis to Overturn the Sale; the Lower Court Did Not Abuse its Discretion in Upholding the Sale

Beyond the procedural deficiencies in his initial brief, Moore fails to establish a cognizable legal or factual basis to overturn the sale or vacate the title.

As a threshold matter, U.S. Bank submits that Moore's "emergency" motion, which sought to vacate the certificate of title issued by the clerk

[3]Moore's initial brief was due to be filed on May 25, 2026 by order of the court entered on April 23, 2026. However, Moore filed an untimely Motion for Extension of Time on May 29, 2026. The Court granted same on July 1, 2026 extending the time for Moore to file the initial brief to July 31, 2026. By August 5, 2026, when Moore failed to file his initial brief, the Court entered an order directing the brief to be filed within 10 days—August 17, 2026. Despite this, Moore filed his initial brief on August 18, 2026.

(and not the underlying final judgment of foreclosure), pursuant to Rule 1.540(b), was not an authorized motion. “Florida Rule of Civil Procedure 1.540(b) authorizes motions for relief from a final judgment, decree, order, or proceeding ….” As set forth in the plain language of Rule 1.540(b), only motions seeking relief from final judgments, decrees, orders, or proceedings are authorized.“ *Columbus Apartments, LLC v. MJM Structural Corp.*, 346 So. 3d 1248, 1250 (Fla. 3d DCA 2022) (citing *Lawrence v. Marina Tower of Turnberry Isle Condo. Ass’n, Inc.*, 323 So. 3d 271, 273 (Fla. 3d DCA 2021) (“Our Supreme Court plainly indicated that [Rule 1.540(b)] is applicable to seek vacatur of orders that are final.”); *Bryant v. Wells Fargo Bank, N.A.*, 182 So. 3d 927, 930 (Fla. 3d DCA 2016) (“[A] motion to vacate pursuant to Rule 1.540(b) cannot be directed toward non-final orders such as the writ of possession, an order here.”); *Hollifield v. Renew & Co., Inc.*, 18 So. 3d 616, 617 (Fla. 1st DCA 2009) (“Rule 1.540 authorizes a trial court to grant relief ‘from a final judgment, decree, order, or proceeding’-not from a non-final order such as that at issue here.”); Philip J. Padovano, 5 Fla. Prac., Civil Practice § 13:8 n.2 (2022 ed.) (“The remedy afforded by rule 1.540 applies only to final judgments.”)).

Significantly, the result is the same even if the party moving to vacate the non-final order mislabels the motion to vacate as a motion directed to a

final order pursuant to Rule 1.540, as this mischaracterization will not transform the resulting order into an appealable order under Fla. R. App. Pro. 9.130(a)(5). *See Bennett's Leasing, Inc. v. First St. Mortg. Corp.*, 870 So. 2d 93, 98 (Fla. 1st DCA 2003).

Thus, an appeal of an order entered on a motion to vacate a non-final order must be dismissed for lack of appellate jurisdiction. *See, e.g.*, *Stubbs v. Fannie Mae*, 250 So. 3d 151, 152 (Fla. 2d DCA 2018) (holding a Rule 1.540 motion directed to a non-final order is not authorized "and leaves [the appellate court] without jurisdiction to review the denial of the motion to vacate."); *Valledor Co. v. Decky*, 338 So. 3d 956, 958 (Fla. 3d DCA 2022) (holding order on motion to vacate partial default judgment was not reviewable because the "motion was not directed toward a final order"); *Rodriguez v. Young Am. Corp.*, 717 So. 2d 621, 621 (Fla. 3d DCA 1998) ("Because the appellants seek review of an order setting aside the entry of a default as opposed to a default judgment, we sua sponte dismiss this appeal for lack of jurisdiction."); *Dawkins, Inc. v. Huff*, 836 So. 2d 1062, 1065 (Fla. 5th DCA 2003) (dismissing appeal of an order on a motion to set aside a clerk's default as a non-appealable, non-final order).

Accordingly, Moore is not entitled to review by this court regarding an order seeking to vacate certificate of title pursuant to Rule 1.540(b).

To the extent Appellant sought to vacate the foreclosure sale, he fails to set forth a cognizable legal or factual basis to overturn the sale. "[I]t is well settled that [i]n order to vacate a foreclosure sale, the trial court must find: (1) that the foreclosure sale bid was grossly or startlingly inadequate; and (2) that the inadequacy of the bid resulted from some mistake, fraud or other irregularity in the sale." *IndyMac Fed. Bank FSB v. Hagan*, 104 So. 3d 1232, 1236 (Fla. 3d DCA 2012) (internal quotation omitted). *See also Salazar v. HSBC Bank, USA, NA*, 158 So. 3d 699, 701 n.1 (Fla. 3d DCA 2015) (same).

Moore's brief fails to mention what legal basis he presented to the trial court that would support setting aside the sale. *Jenkins*, 328 So. 3d at 1146. Because he did not. Moore's "emergency" motion merely recited formulaic elements in a conclusory, nonsensical fashion. (A. p. 89-94, ¶1) ("The foreclosure sale should be vacated because of Clerical error, procedural irregularity, or mistake affecting the sale. Fraud, misrepresentation, or misconduct by the plaintiff or third parties."). Indeed, Moore's own motion suggests that the request to vacate the sale was merely an afterthought. (A. p. 90, ¶1). ("I am requesting that the Certificate of Title be Vacated and I would like to set aside the foreclosure sale.") (emphasis added). But in order to do so, Moore was required to make a

proper showing of grounds to set aside the foreclosure sale. Moore vaguely invoked a clerical error while simultaneously claiming purported fraud or misconduct. Moore's conclusory allegations are not enough to overturn the foreclosure sale.

As a result, the court did not abuse its discretion in denying the "emergency" motion to vacate the sale. *Canakaris v. Canakaris*, 382 So. 2d 1197, 1203 (Fla. 1980) (reasonableness test determines abuse of discretion). The Florida Supreme Court instructs:

> If reasonable men could differ as to the propriety of the action taken by the trial court, then the action is not unreasonable and there can be no finding of an abuse of discretion. The discretionary ruling of the trial judge should be disturbed only when his decision fails to satisfy this test of reasonableness.
>
> *Id.*

"Equitable factors that could be legally sufficient to set aside a foreclosure sale include 'gross inadequacy of consideration, surprise, accident, or mistake imposed on complainant, and irregularity in the conduct of the sale.'" *Id.* (emphasis omitted). "In adjudicating a postsale objection, the court is tasked with ensuring that no wrong has been accomplished in and by the manner in which [the sale] was conducted." *Tanis v. HSBC Bank USA, N.A.*, 289 So. 3d 517, 520 (Fla. 3d DCA 2019) (internal quotation omitted).

In this case, the record does not reveal any cognizable equitable factor to set aside the sale. The record does not reflect an abuse of discretion. Indeed, the court did not abuse its discretion in denying the first "Emergency" Motion to Vacate Sale and/or Certificate of Title.

The court awarded a foreclosure judgment in this case, the loan has been in default, and the sale should stand. For these reasons, the Court should affirm.

IV. To the Extent the Certificate of Title was Issued Prematurely, it is Harmless Error and Does Not Require Vacatur of the Foreclosure Sale

Even if the certificate of title was issued prematurely, it is of no moment to the outcome of this case; there is no harmful error.

"The purpose of the harmless error analysis is to conserve judicial labor by holding harmless those errors which, in the context of [a] case, do not vitiate the right to a fair trial and, thus, do not require a new trial." *Special v. W. Boca Med. Ctr.*, 160 So. 3d 1251, 1254-55 (Fla. 2014) (internal quotation omitted). *See also* § 59.041, Fla. Stat. ("No judgment shall be set aside or reversed . . . on the ground of . . . the improper admission or rejection of evidence or for error as to any matter of pleading or procedure, unless in the opinion of the court to which application is

made, after an examination of the entire case it shall appear that the error complained of has resulted in a miscarriage of justice.”).

Here, there has been no miscarriage of justice. Moore did not file a timely objection to sale. The record further demonstrates that the purpose of the ten-day objection period was served: Moore identified no irregularity in the foreclosure sale itself, and his objection did not establish a legally cognizable basis to set the sale aside. *Hagan*, 104 So. 3d at 1236. The ten-day period is intended to provide an opportunity to identify irregularities in the sale—not to afford a litigant an additional opportunity to delay foreclosure proceedings by pursuing a belated bankruptcy filing. *Rios*, 166 So. 3d at 210. Accordingly, even assuming the certificate of title was issued prematurely, Moore has not demonstrated that the timing of its issuance affected the validity of the sale or deprived him of any substantive right.

Moore’s claim pertaining to prejudice is undeniably self-defeating. The lower court set a foreclosure sale ninety days after the entry of the final judgment. (A. p. 71-80). Moore had ample time to pursue his hypothetical bankruptcy filing yet, according to his initial brief, Moore did not even begin working with bankruptcy counsel until February 4, 2026, the day before the foreclosure sale. *See* IB p. 4. Moore’s decision to wait until the eve of the sale reveals a pattern of delay rather than a miscarriage of justice. In fact,

the record supports the conclusion that Moore's objection was an untimely attempt to forestall the results of the foreclosure sale, not a good faith challenge regarding an irregularity in the sale itself. The harmless-error doctrine does not require reversal under these circumstances.

The Court should affirm.

Alternatively, should the Court disagree, the proper remedy would be simply to remand to direct the Clerk to re-issue the certificate of title forthwith. Moore failed to set forth a cognizable legal or factual basis to set aside the sale. The Certificate of Title is a ministerial document that confirms and memorializes the sale; it is not the sale itself. Any purported procedural error after the sale itself does not require the vacatur of the sale.

CONCLUSION

For the reasons set forth in this Answer Brief, the Court should affirm in all respects.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy hereof was served upon the following parties/counsel on this day, October 16, 2026, by email transmission and electronic filing.

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CERTIFICATE OF COMPLIANCE

Counsel certifies that this brief meets the font and word-limit requirements of Rule 9.045 and Rule 9.210(a)(2)(B) governing this court. The brief is set in Arial 14-point type. Excluding the cover, the tables, the certificates and the signature block, it contains 5831 words, as counted by the word-processing system that prepared it.

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